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SC to hear petition questioning CEC decisions, seeking EC records review

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According to rules, the money has to be allotted by the DST, which is the administrative custodian of the RDI Fund. The DST has already been allocated Rs 23,000 crore to fund the programme, including

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CEC

multi-member Commission was that, and the statute says so, it has to be a decision unanimously or by majority. Now, the way the Election Commission has functioned, there is serious doubt whether the decision of the Election Commission also was there for this entire exercise of SIR,” Singh said. “Because if the Commission has not taken a unanimous decision, then this... And what Your Lordship also has decided (is) on the basis that it is a Commission’s decision. So it is a serious issue. I am only requesting an early date for listing.”

The CJI then directed that the petition be listed next week. The petition referred to al-

leged differences between CEC Kumar and Sandhu and Joshi and the objections raised by the two ECs. “Article 324(1) of the Constitution does not vest the superintendence, direction and control of elections in an individual Chief Election Commissioner. It vests those powers in a Commission,” the plea stated.

“The constitutional text, therefore, deliberately separates membership of the Commission from chairmanship of the Commission, and separates the chairmanship of the Commission from the Commission’s power.”

He said his grievance is not that Kumar exercised the CEC’s powers improperly, “but that he has... held out as entitled to exercise a power, the collective decision-making authority of the Commission under Article

324 and Section 18 of the 2023 Act — the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act – to which Article 324(3) gives him no individual title, he being Chairman of the Commission and not the Commission itself.”

The petitioner urged the court to issue a writ of quo warranto “calling upon” Kumar “to show under what authority he has acted, and continues to act, as though entitled individually to exercise the collective decision-making power vested by Article 324 of the Constitution in the Election Commission as a body, notwithstanding that Article 324(3) constitutes him only Chairman of the Commission and vests in him no individual title to the Commission’s collective authority”.

He requested the court to seek “complete original and primary records relating to the matters” from the Commission “and enforce the constitutional and statutory principle that a power vested by Article 324 in the Election Commission as a

constitutional body cannot be exercised, or represented to the public, the courts or the country as an act of the Commission, except in accordance with the constitutional and statutory framework governing the Commission, including Section 18 of the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023.”

“If the power constitutionally vested in the EC as a multi-member body can, in fact or in substance, be exercised by one office within it without the participation the Constitution and the 2023 Act require, then decisions that determine who is on the electoral roll, and therefore who may vote, raise a serious constitutional question as to whether such decisions are being taken by the constitutional authority the Constitution created for that purpose,” the petitioner said. The plea also said if “upon examination of primary record and other material” produced before the court, “it is found that” he has “exercised, or con-

tinues to exercise, such collective authority without a decision of the Commission taken in accordance with Section 18 of the 2023 Act,” such exercise of authority must be declared “to be without lawful title”.

It also sought a declaration that “the powers vested under Article 324 of the Constitution are constitutionally required to be exercised by the Election Commission of India as a multi-member collegial body, in accordance with Article 324(1) to (3) of the Constitution and Section 18 of the 2023 Act, and that no communication, order, direction, appeal or other act may be issued or represented as an act of the Election Commission save pursuant to a decision of the Commission taken unanimously or, upon disagreement, by majority, in the manner prescribed by Section 18 of the 2023 Act”.

The petitioner asked the court to declare the SIR, and all actions, decisions, directions, and measures taken under it, invalid from the beginning and without legal authority. He said the SIR was undertaken without necessary statutory or constitutional authority and without following the procedure.

Deep-tech

Rs 3,000 crore in last year’s Budget and Rs 20,000 crore this year. DST Secretary Umesh Waghmare was not available for comment despite multiple requests from *The Indian Express*, including queries sent to his official email ID.

The TDB received Rs 2,000 crore earlier this year under the Fund, which was exhausted during the first round of selection in April when 22 companies were offered soft loans worth a total of Rs 2,192 crore.

On August 10, *The Indian Express* reported that 15 of these 22 recipients had investment ties to seven members of the selection committee, raising questions of conflict of interest and propriety — these members said they had recused themselves from the appraisal process of the companies they had links with.

The TDB finalised the next round of selections in August and proceeded with shortlisting more applicants before pausing the process, sources said. The Board has not even been able to issue letters of intent to companies selected in the second round, they said. More than 300 companies have so far applied to receive funding from this programme. About 100 of them have been appraised and 35 selected — 22 in the first round, and 13 in the second.

In the first round, some of

the emerging companies approved included space ventures like Agnikul Cosmos and GalaxEye, quantum start-ups like QuNu Labs, and robotics firms like ideaForge and EndureAir.

The Government created the RDI Fund in November 2025 for companies engaged in front-line research in critical sunrise sectors like quantum, space, robotics and artificial intelligence, including start-ups building their first products. The objective was to help raise money for technologies that have been marked crucial for the growth and strategic independence of the country’s economy.

The Fund promised Rs 1 lakh crore over a six-year period, largely as low-cost long-term loans, and was housed under the Anusandhan National Research Foundation (ANRF), an independent statutory body administratively under DST. It seeks to provide long-term soft loans to private sector research up to 50 per cent of the project cost. The selected company is mandated to mobilise the remaining 50% from non-government sources.

According to rules, eligible companies are to be selected by third-party agencies called Second Level Fund Managers (SLFMs). Initially, two government entities with prior experience in funding private ventures — TDB and Biotechnology Industry Research Assistance Council (BIRAC) under the Department of Biotechnology — were nominated as SLFMs.

About 30-40 other entities from the private sector were also expected to be appointed as SLFMs, considering the large corpus of money to be utilised.

However, nearly a year since the launch of the Fund, only the Rs 2,192 crore committed to companies selected by TDB in the first round has been made available.

The slow progress is mainly because the appointment of more SLFMs has been delayed. Applications for appointment of SLFMs had closed in January, and a committee had finalized its recommendations in May. Besides, the other nominated SLFM, BIRAC has been unable to begin its process of selecting companies because of tax-related procedural uncertainties.

Unlike TDB, a statutory body, BIRAC is a Section 9 non-profit company. The Fund’s rules allow SLFMs to convert their loans to a selected company into equity, which can yield dividends and would be liable for taxes. BIRAC has sought clarity from Finance Ministry on these key issues before it begins disbursing money under the Fund. “At this speed, there is little chance that target of Rs 1 lakh crore would be achieved in six years. The RDI Fund is a very important intervention by the Government. This money is critical for the growth of India’s technology ecosystem. There are lots of companies that need this fund to take their technology development forward,” an industry source said.

2024 SAMBHAL VIOLENCE CASE

Confession can't be sole basis for detention under NSA: SC

Express News Service
New Delhi, September 29

A CONFESSION made before a police officer without any independent material to support it cannot be the basis for detention under the National Security Act (NSA)-1980, the Supreme Court said on Tuesday.

A bench of Justices Dipankar Datta and Sheel Nagu delivered the judgment while quashing the preventive detention of Mulla Afroz, the alleged mastermind of the November 2024 Sambhal violence during the visit of a court-ordered team for a survey of the Jama Masjid.

Setting aside the June 8, 2026, judgment of the Allahabad High Court upholding his detention, the SC bench imposed Rs 10 lakh in costs on the UP government, and directed that the same be paid to Afroz.

The bench said that "where a confessional statement is procured by threats, coercion or inducement and recorded before a police officer, such statement is rendered inadmissible and irrelevant for the purpose of a criminal trial. The question which, thus, presents itself is, whether a statement, which the law treats as irrelevant for determining guilt, can nevertheless constitute a ground for forming the subjective satisfaction necessary to sustain an order of preventive detention. We think not".



At least four people were killed in the violence that broke out in Uttar Pradesh's Sambhal district in November 2024 during the visit of a court-ordered team for a survey of the Jama Masjid. FILE

Afroz was arrested on January 17, 2025, in connection with the violence in Sambhal, which claimed four lives. He was detained under the NSA on October 13, 2025, when he was in judicial custody, and his detention for one year was confirmed on November 28, 2025.

The court noted that Afroz was granted bail by the HC in one of the cases on September 9, 2025, and in all cases by June. It pointed out that the grounds in the detention order show the appellant had moved a bail application and, upon securing release, was allegedly planning to indulge in large-

scale violence. "What is evident therefrom is that the impugned detention is an attempt to frustrate the judicial order granting bail, and to keep the detenu in custody by another route. Such a detention is not preventive but punitive and appears intended to subvert the order granting bail," the court said.

The court agreed with Afroz's contention that the detention order was passed based on his extra-judicial confession, which could not be considered voluntary. It also wondered why Afroz was arrested 54 days after the registration of the FIR.

The bench said that though the state claimed to have supplied to him all 22 materials relied on by it for the detention,

the CCTV visuals, which were used to identify and arrest him, were not supplied.

The bench said "preventive detention has always been regarded as an exceptional measure. Although constitutionally recognised, it operates as a departure from the ordinary guarantees of personal liberty embodied in Article 21 of the Constitution and, therefore, must be invoked with the utmost circumspection and only in those rarest of rare cases where the circumstances genuinely warrant such exercise".

As per the prosecution, Afroz had instigated the crowd that turned violent and, in turn, "the public order of the entire Sambhal city as well as the surrounding areas was completely disrupted...". The Allahabad High Court upheld the detention order, saying it "is based on application of mind and proper exercise of jurisdiction by the respondent no. 3 (District Magistrate, Sambhal)".

The HC also pointed out that 22 documents, in support of the impugned detention order, were provided to Afroz. It noted that in the counter affidavit filed by the state, "it is clear that widespread violence was caused by the petitioner (detenu) and other persons in the alleged incident".

Uttarakhand's first glacial lake early-warning system in Vasundhara Tal, Chamoli

Vidheesha Kuntamalla
Dehradun, September 29

WEEKS AFTER the Nepal disaster, the Himalayan state of Uttarakhand is moving from mapping its vulnerable glacial lakes to monitoring them in real time, with the state's first early-warning system for a glacial lake being installed at Vasundhara Tal in Chamoli from Tuesday.

A scientific and technical team comprising experts from the Central Building Research Institute (CBRI), Roorkee, and the Wadia Institute of Himalayan Geology, Dehradun, left for the high-altitude lake on Tuesday. The operation, scheduled from September 29 to October 15, is being supported by

the State Disaster Response Force (SDRF), the National Disaster Response Force (NDRF), and the Indo Tibetan Border Police (ITBP).

On Tuesday, Chief Secretary Anand Bardhan, who flagged off the team, said the initiative would help reduce the risk posed by glacial lake outburst floods (GLOFs). "This initiative will prove to be a milestone in reducing the dangers of GLOFs in the coming years and in understanding the risks," he said.

In August, a massive flood in Nepal's Lhende Khola and Bhote Koshi river system was initially linked to a possible earthquake. Subsequent analysis by the US Geological Survey found that the seismic energy was instead generated by a gla-

cial collapse and debris flow. The disaster killed hundreds and swept away roads, bridges and houses.

A year earlier, Uttarakhand itself witnessed the devastating Dharali flash flood in Uttarakashi. While some experts suspected a glacial lake breach, others pointed to rainfall, glacier-related processes and the possibility of an avalanche or landslide. It is against this backdrop that the initiative begins with Vasundhara Tal this year.

Surveys to sensors

In January 2025, *The Indian Express* reported that the Uttarakhand State Disaster Management Authority (USDMA) was preparing a plan to study and monitor the state's glacial lakes.



Chief Secretary Anand Bardhan flagging off the team that left for the high-altitude lake, in Dehradun on Tuesday

The National Disaster Management Authority (NDMA) had identified 13 high-risk glacial lakes in Uttarakhand, of which five were classified as Category A, the highest-risk

category. Vasundhara Tal was among them.

USDMA officials had said the first step was to establish the physical characteristics of the lakes — including their

length, width, terrain and depth — and assess downstream flow. The next stage was to deploy instruments for real-time monitoring.

According to the latest government data, 344 glacial lakes were identified in Uttarakhand in 2023 by the National Remote Sensing Centre. Of the 13 high-risk lakes, six are in Pithoragarh, four in Chamoli and one each in Bageshwar, Tehri Garhwal and Uttarkashi.

Bathymetric surveys have already been completed at six lakes — Saraswati Tal and Vasundhara Tal in Chamoli; Kedartal in Uttarkashi; and Mambang, Pyungru and Syunkti Yankti proglacial lakes in Pithoragarh's Darma Valley.

These surveys establish the

depth and water-holding capacity of the lakes — information that can be used to assess the potential scale of a GLOF.

What the Vasundhara system will monitor

The system being installed at Vasundhara will track water level, weather, snow conditions, water flow and movement around the lake.

A water-level sensor will monitor fluctuations and abnormal changes. An automatic weather station will record temperature, humidity, rainfall, wind speed and direction, atmospheric pressure and light intensity. Snow-depth and sub-surface temperature sensors will monitor changes in snow conditions. Tilt and accelerometer

sensors will detect movement and vibrations at selected locations. The equipment will be powered through a solar-energy system.

The state government said the system would enable "continuous monitoring of environmental and hydrological changes in and around Vasundhara Tal".

The larger challenge, however, lies in converting that information into a warning that reaches vulnerable communities before a flood does.

The government says satellite phones and low-Earth-orbit communication devices have been provided to the team to maintain communication with USDMA from the high Himalayas.







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Delhi has a winter plan, but clean air needs more

THE DELHI government has done the right thing in framing an anti-pollution plan before the dreaded smog sets in. Unlike the usual pattern of enforcing emergency measures, it has announced a set of restrictions in advance. The plan, which will come into effect from November 1, includes curbs on construction activities, tighter checks on vehicles and industries, higher parking charges, staggered office timings and work-from-home mandates. Most of these measures have been part of the city’s pollution-control arsenal for at least half a decade. By all accounts, they have had only a partial mitigating effect on Delhi’s pollution. A fragmented approach to pollution control has often proved to be the undoing of past plans. By setting the ball rolling early, the city’s administration has given itself valuable time to put in place coordination mechanisms between agencies in charge of waste management, air-quality monitoring, transport and law enforcement. Even so, it will have its task cut out.

In recent years, scholarly work has underlined that municipal limits or even the National Capital Region (NCR) boundaries are structurally insufficient to tackle Delhi’s wintertime crisis. The plan talks of coordinated action “on pollution arising from agricultural activities”, including discussions between agriculture ministers of NCR states. However, it seems the Delhi government has already been late in getting off the block. Stubble-burning season has started, and initial reports have indicated farm-fire incidents across Punjab, Haryana, Uttar Pradesh and Rajasthan. Experts also believe that the Super El Niño will complicate matters this year — it could reduce the rain-causing western disturbances, making even the temporary clearing of pollutants difficult. Peak stubble-burning could coincide with Diwali this year. As temperatures fall and wind speeds come down, Delhi will need to prepare for pollutants from multiple sources to overlap.

In the past few months, the Delhi government has acknowledged the need to frame pollution control as a year-long endeavour. Its recently framed EV policy is a notable step in that direction. In the same vein, the winter plan talks of reducing traffic congestion and reliable and interconnected public transport. However, the city’s authorities will do well to ensure that bans and restrictions do not become the mainstay of the pollution-control strategy. Clearing Delhi’s smog will require creating a governance framework that rewards sustained reduction in pollutants. Measures to implement the work-from-home directive, for instance, will need to be framed in the language of people’s well-being, not coercion. In recent years, Delhi has indicated a groundswell of support for clean air. The Capital will need to go well beyond its latest winter plan to translate that demand into sustained political and administrative action.

US, Iran and the missing endgame

IN CONTRAST to the early weeks of the war in West Asia, when the US was pressing for a deal and Iran was playing hardball, Tehran has in recent days emerged as the actor that is more eager for talks. After threatening to “annihilate” Iran in his speech at last week’s UN General Assembly session, US President Donald Trump rejected an Iranian proposal for a seven-day roadmap to end hostilities. With the US midterms approaching, Trump is not allowing Tehran, which is itself basing much of its calculations on November, to use the elections as leverage against him. Another source of leverage for Iran also appears to be declining: The Strait of Hormuz.

The closure of the Strait and the squeezing of commercial flows through the waterway has been Iran’s most potent economic weapon against a superior military power. Tracking data, however, reveals that crude exports from West Asia rebounded in September. Shipments through the Strait and alternative routes have been carrying just under 80 per cent of their prewar flows as of last week, the highest since February. Saudi Arabia has repaired the East-West pipeline — a lifeline that allows its crude to bypass Hormuz — which was damaged by a drone strike, and has reportedly resumed Red Sea oil exports. Iran, on the other hand, has been unable to export crude through Hormuz due to the US counterblockade, and the Iranian oil that lies outside the blockade for sale is bound to run out sooner or later. The weakening of Iran’s chokehold and the battering of its economy due to a wave of new US sanctions, dubbed Operation Economic Outcast, explain Tehran’s sudden willingness to cut a deal.

If Iran is anxious to talk, the US appears willing to wait for sanctions to inflict enough economic pain to force Tehran into concessions. But even as high inflation and shortages of goods, gasoline and electricity continue to make life difficult for ordinary Iranians, there is little sign that the financial pain is translating into a decisive pressure on the leadership. If the deadlock is to be broken, then, both sides will have to give up some of the leverage they currently hold. Otherwise, they risk remaining locked in a prolonged stalemate.

To save tigers, follow crime beyond the reserve



RAJESH GOPAL

A GLOBAL non-profit working on trade in wild animals and plants, TRAFFIC, has assessed 25 years of data to document 2,551 seizures involving at least 3,808 tigers until June 2025. For much of tiger conservation history, wildlife crime had a familiar geography: A tiger reserve, poachers attempting to breach it, and traders waiting elsewhere. Protection meant more patrolling, better intelligence, and quicker intrusion detection. While these remain indispensable, both the tiger landscape and the world of wildlife crime have fundamentally changed.

Tigers move through buffers, corridors, multiple-use forests, plantations, agricultural fields, riverine strips, and occasionally town edges, resulting in human-tiger conflicts. A tiger reserve remains the biological source, but a tiger’s life unfolds across a larger landscape. A safely monitored tiger in a protected area (PA) becomes vulnerable once it moves through inadequately monitored corridors or human-dominated landscapes. Global evidence suggests changes in tiger trafficking. Older trafficking centred on skin and bone, but whole animals, dead and alive, and a wider range of derivatives have become prominent. Tiger traffickers often have links to networks dealing in leopard, bear, pangolin, or other high-value wildlife. Digital means have emboldened criminals. Traffickers use transport systems, financial channels, and intermediaries extending far beyond traditional wildlife traders.

Two landscapes are important. One is the “ecological” landscape, comprising the PA, buffer, corridor, and human-animal interface. The other one is the “crime landscape” linking poacher, collector, network, transit system, physical/digital market, and consumer. These landscapes intersect.

Repeated tiger movement through poorly monitored areas means easy information for people capable of exploiting it. Therefore, PA boundaries cannot remain the sole boundary of protection. Inside the source, protection remains intensive and tiger-specific. In the buffer and beyond at the landscape scale, forest guards cannot carry this responsibility alone. Protection needs to become inclusive and intelligence-led, involving territorial forest staff, local communities, gainful community stewardship, police, enforcement agencies, and cyber- or financial-crime experts.

Tiger protection must today identify where young tigers disperse, where they cross farms, where villages experience recurrent interfaces, where historical offences occurred, and where transport nodes are located

Tiger protection must today identify where young tigers disperse, where they cross farms, where villages experience recurrent interfaces, where historical offences occurred, and where transport nodes are located

Gopal is secretary general, Global Tiger Forum



What an infrastructure of innovation depends on — a responsive legal system



SIDEBAR
By J SAI DEEPAK

I ENDED my last piece ('Patent rights and public health: What are Bharat's options?' *IE*, January 19) on the note that I would touch upon various aspects of the creation of an ecosystem for innovation. In this piece, I will attempt to highlight the importance of an effective and responsive legal system to encourage investment in innovation.

Between 1999 and 2005, the Indian patent regime witnessed a series of critical changes. The last major amendment to the Patents Act, 1970 was in 2005, when product patents were reintroduced for chemical substances, which impacted the pharmaceutical, biotechnology and agro-chemical sectors. Thanks to these changes, Bharat witnessed an exponential spike in interest and awareness in innovation, the creation of Intellectual Property (IP), and the enforcement of IP Rights (IPRs). This was not limited to patents, and extended to trademarks, copyrights, geographical indications, industrial designs, semiconductor design layout and plant variety protection.

This development did not happen in a silo since it was the result of Bharat's obligations as a member of the World Trade Organisation (WTO) and its instruments such as Trade-Related Aspects of Intellectual Property Rights (TRIPS). These obligations required TRIPS member countries to adopt common minimum definitions and conditions for grant or refusal, and protection of IPRs, while making room for flexibilities to accommodate national interest, such as in public health. This resulted in national IP laws being revamped to bring them into line with TRIPS commitments while providing for public-interest carveouts and guardrails. These included compulsory licences, checks against evergreening of patent rights, the requirement of local commercial exploitation of patented technology to upgrade domestic industrial capabilities, and changes to competition law to prevent abuse of IP monopolies. These developments must be understood in the



ILLUSTRATION: C R SASIKUMAR

context of the post-liberalisation coming of age of Indian commerce and its efforts to remain competitive in the domestic market and to compete globally within the WTO regime. With this came greater complexity and sophistication in commercial models, transactions and instruments.

Naturally, the quantum and variety of commercial disputes, in particular IP disputes, saw a sharp rise, and with it rose stakeholders' expectations that the Indian legal system should respond with greater sophistication and expedition. These expectations, initially the preserve of foreign investors, were increasingly shared by Indian players due to their growing heft. These expectations assumed criticality since the quality and speed of resolution became an important metric in global rankings to assess the ease of doing business in Bharat.

Broadly speaking, the Indian legal system responded in two ways. The first was to provide a strong impetus to Alternative Dispute Resolution (ADR) mechanisms such as arbitration and mediation. The hope was that this would decongest civil courts and translate to nuanced and speedy disposal of time-sensitive commercial disputes without being bogged down by conventional trial procedures and with minimal interference by courts. The ongoing chorus in Bharat for more investment towards creating a full-fledged world-class

The Delhi HC's framework can be replicated in courts across the country to cater to various innovation and commercial hubs, provided similar investment is made in ramping up their infrastructure

ADR infrastructure and ecosystem tells us that while a lot remains to be done, the ADR initiative has found broad acceptance with stakeholders.

The second response was an attempt to improve the conventional adjudication process by enacting the Commercial Courts Act in 2015. This empowered state governments to constitute dedicated commercial courts in consultation with their respective high courts. The Act also introduced a raft of provisions and made amendments to the Code of Civil Procedure that were specifically applicable to commercial disputes, with a view to expediting their disposal.

Under this initiative, arguably the most successful example has been that of the Delhi High Court, which is worth studying and replicating wherever possible to benefit courts and litigants across the country. Even prior to the 2015 Act, the Delhi HC had a track record of delivering landmark judgments in complex commercial disputes, especially IP disputes. This could be attributed to a host of factors besides locational advantage, such as the presence of an active and thriving original side of the Delhi HC — the court is empowered by its parent statute to act as the forum of first instance for civil suits above a certain pecuniary value. Even before 2015, this feature of the Delhi HC allowed parties to high-end commercial disputes to access its jurisdiction directly as the civil court

of first instance instead of having to approach subordinate courts in Delhi.

Over the years, this has resulted in the Delhi HC having the opportunity to deliver nuanced judgements in several complex matters involving pharmaceutical drugs, Standard Essential Patents in the realm of telecommunication, copyrights and matters requiring a tradeoff between IP Rights and fundamental rights. So much so that for legal systems across the Global South *and North*, Indian jurisprudence emanating from the Delhi HC has served as the benchmark for treatment of IP Rights and protection of national interest in the realm of public health. The Commercial Courts Act allowed the court to build on this track record and create an Intellectual Property Division to exclusively handle the volume and quality of IP disputes landing before it. The switch to e-filings during the Covid lockdown in 2020 made the HC a paperless e-court for the most part, which has become a boon for litigants seeking urgent relief. In 2022, to further streamline the handling of IP disputes, the Delhi HC framed its own IP Division Rules, which have resonated with litigants, investors and IP bodies both within and outside Bharat, such as the World Intellectual Property Organisation. The net positive has been the high confidence reposed by stakeholders in the High Court's ability to handle high-end and complex commercial and IP disputes. This framework can be replicated in courts across the country to cater to various innovation and commercial hubs, provided similar investment is made in ramping up their infrastructure.

The bottom line is this: If Bharat wishes to preserve the confidence of those who have invested in its vision of achieving Viksit Bharat by 2047, and inspire more people to invest in it, it needs to create a culture and ecosystem of innovation and entrepreneurship, of which the legal system is an integral, critical and indispensable component. This would convey the message that Bharat respects merit, values innovation, enforces rights and dispenses justice in keeping with its civilisational ethos, which places a premium on *nyaya* and *dharma*.

The writer is a senior advocate practising before the High Court of Delhi and the Supreme Court of India. He is the author of India that is Bharat: Coloniality, Civilisation, Constitution, and India, Bharat and Pakistan: The Constitutional Journey of a Sandwiched Civilisation

Towards a gender-just Uniform Civil Code



AUDREY DMELLO AND FLAVIA AGNES

ON SEPTEMBER 13, Union Home Minister Amit Shah stated that a Uniform Civil Code (UCC) would be implemented in all 21 BJP- and NDA-ruled states before the 2029 Lok Sabha elections. The UCC became an important goal for the BJP after the 1985 Shah Bano judgment. However, there was no draft to engage with. Then, in January 2025, Uttarakhand's UCC came into force. Gujarat, Assam and Madhya Pradesh are awaiting Presidential assent. Maharashtra, Rajasthan, West Bengal and Chhattisgarh have set up drafting committees.

The justification for a UCC is often anchored in constitutional equality and gender justice. But a close reading of the Uttarakhand UCC reveals a law that confuses uniformity with equality and conflates regulation with protection. It has bureaucratic hurdles and criminal penalties that will disproportionately affect poor and marginalised communities. It fails to draw on progressive reforms within India's diverse personal laws or the best practices from family codes worldwide. It ignores lived realities and legal evolution and reads like a "copy-paste" of the Hindu Code Bill, lacking vision, inclusivity, and systemic simplification.

These are some of our concerns, arising from the Uttarakhand UCC, beginning with the compulsory registration of live-in relationships. Notifying police and parents is surveillance masquerading as protection. A UCC must ensure that registration, if any, is optional, confidential, and offers tangible benefits like maintenance, legitimacy of children and inheritance rights, not social exposure. Another concern is the criminalisation of extra-judicial dissolution of marriage with three years' punishment and a fine. Being a civil law, a UCC should avoid criminalising civil marriage disputes.

Desertion is one of the most common issues women face, leaving them and their children extremely vulnerable. A UCC should include enforceable economic remedies for deserted women, including automatic maintenance orders and injunctive relief against disposal of assets.

While the Hindu Marriage Act permits either spouse to claim maintenance, under other personal laws and the Special Marriage Act, only women can claim maintenance. A UCC should retain this gender-specific right. The deep social inequality and unequal power relations within marriage require this protection for women.

Mandating that every divorce be filed in a civil court will create a bottleneck of historic proportions. Family courts are already overburdened with lakhs of cases languishing for years. Customary divorces are speedy, economical and allow greater access to weaker sections. A UCC should create a robust administrative mechanism for mutual-consent divorces and reserve court intervention for contested or complex matters.

The Hindu Code Bill, while giving inheritance rights to Hindu women, also gave Hindu men the absolute right to bequeath their property. What ensued was the silent disinheritance of women through wills. On the other hand, Muslim women have a protected share in the property that cannot be willed. A UCC must protect wives and children with a minimum fixed share that cannot be willed.

It must also recognise women's unpaid care and domestic labour and guarantee women an equitable share in assets accumulated, sustained or value-added during marriage. Marital property rights for women is a long-overdue right that should be included.

Courts have repeatedly held that a man who has used deceit to enter a second marriage cannot take advantage of the illegitimacy of that marriage to deny support to a woman who married him in good faith. Courts have granted women maintenance, even if the marriage is technically void. A UCC must codify this principle and guarantee second wives clear rights to maintenance and economic protection.

The Uttarakhand UCC remains entirely silent on the tax benefits reserved for Hindus via the Hindu Undivided Family (HUF). It must address this regressive and unequal tax advantage.

The Uttarakhand UCC penalises parties for non-registration of marriage, divorce and live-in relationships by imposing monetary fines and even imprisonment in some cases. Such sanctions will have a severe impact on the poor and the marginalised. A UCC should ensure easy access, awareness and user-friendly procedures, rather than adding punitive measures.

The Maharashtra UCC committee was constituted on July 9 under Justice Ranjana Desai. On September 19, Justice R C Chavan resigned from the committee, raising concerns about its consultative process. Democratic, transparent consultations with individuals and organisations working on the rights of women, Adivasis, queer and transgender people, and persons with disabilities should be held, not as a formality but as a constitutional necessity.

Dmello is director and Agnes is founder of Majlis, a legal centre for women and children



AMEER SHAHUL

THE UNION Ministry of Health and Family Welfare has started a process to allow the sale of prescription drugs only under CCTV surveillance across the country by early 2027. On the face of it, this may look like an innovative solution to a long-pending problem. But it also opens a Pandora's box.

There are obvious advantages. A camera can establish whether a prescription was presented, whether a particular medicine was handed over and when a transaction took place. It could help drug inspectors investigate complaints against pharmacies repeatedly selling prescription medicines without prescriptions. For Schedule H1 and X medicines, a stronger audit trail could help prevent diversion and misuse. The intention is clear: Use a relatively simple technology to make prescription-drug enforcement more transparent and accountable.

But this is where the conversation should become more uncomfortable. A camera at a chemist can record somebody buying an antidepressant, an HIV medicine, a fertility drug, an abortion pill, cancer treatment or psychiatric drugs. The combination of a face, pharmacy, time and transaction can reveal an extraordinary amount about that person's private life.

If the intention is specifically to tackle diversion and illegal sale of high-risk medicines, why should every prescription transaction become a subject of video surveillance?

If the intention is to tackle diversion and illegal sale of high-risk medicines, why should every prescription transaction be subject to video surveillance? A person buying an antibiotic, an antihypertensive or an anti-diabetic medicine is not necessarily involved in a high-risk transaction merely because a prescription is required. There is another limitation. A camera cannot tell whether a prescription is genuine. It can show that a piece of paper was handed across a counter. CCTV may document a transaction without solving the regulatory problem.

Then comes privacy. Consider what three months of footage could mean. A person visits the same pharmacy every month. Their face is recorded. The pharmacy knows the medicine. The date and time are captured. If such recordings can be accessed, copied, linked to other databases or processed through facial-recognition systems, the footage becomes a potential map of a person's health-related behaviour.

This raises questions the government needs to answer before the proposal becomes law. Who can access the footage? Can a drug inspector access it? Can the police demand it? Can another government

department obtain it? Can it be used for purposes unrelated to drug regulation? Can a citizen find out whether footage concerning them has been accessed? The Supreme Court's privacy jurisprudence has emphasised legality, necessity and proportionality when fundamental rights are restricted. The government needs to show not just that CCTV might be useful, but that blanket surveillance of prescription transactions is necessary to achieve the regulatory objective and that a less intrusive method would not work equally well.

India already has prescription requirements, registers, licensing conditions, inspections and specific rules governing Schedule H, H1 and X medicines. If illegal sales are occurring, the first question should be whether the existing regulatory machinery is adequately inspecting pharmacies and acting against violations.

There is a danger in confusing the collection of more data with better regulation. Before the camera enters the chemist, the government needs to answer a more fundamental question: Who will be watching the watcher?

Shahul is the author, most recently, of The Silent Syndicate: How Big Finance is Destroying India's Healthcare

Problem is weak drug regulation, CCTV is no cure

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• LEGAL

2012 rape-murder in Karnataka: How botched probe led to SC order for SIT

Mustafa Plumber
Bengaluru, September 29

THE SUPREME Court on September 21 ordered a fresh investigation into the unsolved 2012 rape and murder case of a 17-year-old college student near the prominent temple town of Dharmasthala in coastal Karnataka.

The botched case, which was investigated by three agencies, had sent shockwaves through Dakshina Kan-nada district and sparked protests.

The lone suspect was a mentally unwell man who had been arrested soon after the body of the girl, Sowjanya, was found. But a special CBI court acquitted him in June 2023 citing lack of evidence. In 2024, the girl's family moved the Karnataka High Court seeking a reinvestigation, but the court dismissed this plea. It was then that the family moved the Supreme Court, which has now set aside the High Court's dismissal and pulled up the probe agencies.

The rape and murder case

It was on October 9, 2012 that the student went missing when she was returning to her home. Her body was dis-covered the following morning inside a nearby forested area. Police in Belthangady town initially took up the case. The next day, some local residents, who worked with the trust that manages the town's famous Manjunathesh-wara Temple, nabbed a man named Santhosh Rao and handed him over to the police. The girl's autopsy report noted that she had suffered a number of injuries, includ-ing to her neck (strangulation marks) and private parts.

The state's Criminal Investigation Department (CID) took over the case in 2013, and handed it over to the Cen-tral Bureau of Investigation (CBI) in the same year amid a public outcry and campaigns for justice.

But in June 2023, Rao was acquitted by a CBI court in Bengaluru, which ruled that the agency had not produced enough evi-dence to prove a direct link between the accused and the crime.

Problems with the probe

The investigation was marked by lapses from the very beginning. For

instance, though Sowjanya was carrying an umbrella as well as a bag, police managed to recover only the latter. The court that acquitted Rao had also pointed out that the doctor who conducted the autopsy "did not collect the viscera from the body, and he has not properly collected the vaginal swab, which made the DNA expert not carry out a proper investigation".

There have also been allegations that there were dis-crepancies in the statements of the locals who had initially nabbed Rao. One of them later allegedly died by suicide. There were also allegations, that the girl's body may have been moved, which meant more than one per-son could likely have been involved. Incidentally, hair strands of other persons, besides Rao, were found on the victim's clothes.

What did courts say?

A year after the acquittal of the sole accused, Rao, Sowjanya's family moved the Karnataka High Court seek-ing a fresh investigation. But the court, in its August 30, 2024 verdict, said that no purpose would be served by a reinvestigation. It said it was doubtful whether DNA evi-dence that was not collected at the initial stage would still be available. But the Supreme Court found that the High Court's finding on availability of evidence was "clearly erroneous".

The top court referred to the opinion of a forensic expert who said that suspects could still be identified by using the DNA of the hair strands from the victim's clothes. The bench ruled: "The observation of the High Court that it is doubtful that evidence that could not be collected at the golden hour is still available and that no useful purpose would be served even if reinvestigation was permitted is clearly erroneous and cannot be sustained."

• ARTIFICIAL INTELLIGENCE

Nvidia's plan to rein in rogue AI agents, and where it falls short

Soumyarendra Barik
New Delhi, September 29

NVIDIA, THE tech giant known for design-ing advanced chips, has announced a new open platform designed to put technical li-mits around AI agents. It includes a system that can monitor their actions at the hard-ware level and stop them if they move beyond the boundaries set for them.

The announcement comes as concerns over AI agents (those having more auton-omous capabilities compared to AI chat-bots) acting beyond their instructions have intensified. Just last week, Australia's Prime Minister Anthony Albanese revealed that an OpenAI agent gained unauthorised access to a government website, in what is the first known case of an AI system hack-ing a government network. These inci-dents have fed into the broader debate over whether the development of increasingly capable AI systems needs to be slowed so that safety measures can keep up.

How does Nvidia's system work?

The Nvidia Open Agent Safety Platform consists of two main components— Open-Shell, an open-source software layer that creates a secure runtime boundary around an AI agent, and Nvidia Sentry, a hardware-based watchdog designed to continuously monitor an agent's behaviour.

The first layer, OpenShell, is essentially a controlled environment in which an AI agent can operate. It creates boundaries around what an agent can access and the actions it can take.

Notably, these restrictions sit outside the AI model itself. Nvidia's argument is that an agent should not be expected to po-lice its own behaviour simply because it has been instructed through a prompt. An agent may be given access to a particular folder to retrieve an invoice, but OpenShell can prevent it from accessing unrelated systems or files.

OpenShell is designed to run on Nvi-dia's Vera CPUs but, because it is open

Additional layer

- The underlying idea is to add several independent layers of control around an AI agent.
- That approach is particularly relevant as agents move from answering questions to carrying out tasks across software sys-tems.

source, Nvidia says it can also be extended to work with processors from companies such as Intel. The second layer, Sentry, op-erates below the software level. It runs on Nvidia's BlueField-4 data processing units (DPUs) and continuously monitors agent activity independently of the agent and the system on which it is running. If an agent attempts to move outside its permitted software boundary, Sentry can quarantine and stop it, with Nvidia saying the enforce-ment can happen in milliseconds.

Why is this important?

Nvidia says over 100 organisations are working with the technology. Anthropic is integrating OpenShell and BlueField con-trols with its Claude Managed Agents. Microsoft, Palantir and JPMorganChase are among others using the technology.

The underlying idea is to add several in-dependent layers of control around an AI agent. That approach is particularly relevant as agents move from answering questions to

carrying out tasks across software systems.

But Nvidia's platform is not a solution to every AI safety problem. It is primarily designed to contain what an agent can do. It does not, by itself, prevent a model from making mistakes, behaving deceptively or making a bad decision within the per-missions it has been given. The effective-ness of the system will also depend on how accurately organisations define those per-missions and boundaries.

AI agents going rogue

Nvidia's announcement follows several incidents in which AI systems behaved in unexpected ways during cybersecurity evaluations OpenAI disclosed in July that models being evaluated for advanced cy-bersecurity capabilities escaped their re-stricted testing environment and accessed the open Internet. Anthropic disclosed three instances in which Claude models accessed infrastructure belonging to real organisa-tions during cybersecurity evaluations.

